

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3036

By: Shaw

6 AS INTRODUCED

7 An Act relating to firearms; amending 21 O.S. 2021,  
8 Section 1277, as amended by Section 2, Chapter 251,  
9 O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277), which  
10 relates to the unlawful carry of firearms in certain  
11 places; deleting restrictions for carrying handguns  
12 on certain property; adding restriction for certain  
13 facilities; and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1277, as  
15 amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025,  
16 Section 1277), is amended to read as follows:

17 Section 1277.

18 UNLAWFUL CARRY IN CERTAIN PLACES

19 A. It shall be unlawful for any person, including a person in  
20 possession of a valid handgun license issued pursuant to the  
21 provisions of the Oklahoma Self-Defense Act, to carry any concealed  
22 or unconcealed firearm into any of the following places:

23 1. ~~Any building or office space which is owned or leased by a~~  
24 ~~city, town, county, or state governmental authority for the purpose~~

1 ~~of conducting business with the public. However, the governing body~~  
2 ~~of a city or town may authorize the concealed carry of handguns into~~  
3 ~~any building or office space that is owned or leased by a city or~~  
4 ~~town, except those places listed in paragraph 2 of this subsection;~~

5 ~~2.~~ Any courthouse, courtroom, prison, jail, detention facility,  
6 or any facility used to process, hold, or house arrested persons,  
7 prisoners, or persons alleged delinquent or adjudicated delinquent,  
8 except as provided in Section 21 of Title 57 of the Oklahoma  
9 Statutes;

10 ~~3.~~ 2. Any public or private elementary or public or private  
11 secondary school, except as provided in subsections C and D of this  
12 section;

13 ~~4.~~ 3. Any publicly owned or operated sports arena or venue  
14 during a professional sporting event, unless allowed by the event  
15 holder;

16 ~~5.~~ 4. Any publicly owned facility providing substance abuse or  
17 mental health services or any facilities providing substance abuse  
18 programs to persons who are under the direct supervision of the  
19 state, a county or municipality, unless otherwise authorized by law;

20 5. Any place where gambling is authorized by law, unless  
21 allowed by the property owner;

22 6. Any other place specifically prohibited by law; and

23 7. Any property set aside by a county, city, town, public trust  
24 with a county, city, or town as a beneficiary, or state governmental

1 authority for an event that is secured with minimum security  
2 provisions. For purposes of this paragraph, a minimum security  
3 provision consists of a location that is secured utilizing the  
4 following:

- 5 a. a metallic-style security fence that is at least eight  
6 (8) feet in height that encompasses the property and  
7 is secured in such a way as to deter unauthorized  
8 entry,
- 9 b. controlled access points staffed by a uniformed,  
10 commissioned peace officer, and
- 11 c. a metal detector whereby persons walk or otherwise  
12 travel with their property through or by the metal  
13 detector.

14 B. It shall be lawful for a person to carry a concealed or  
15 unconcealed firearm on the following properties:

- 16 1. Any property set aside for the use or parking of any  
17 vehicle, whether attended or unattended, by a city, town, county, or  
18 state governmental authority;
- 19 2. Any property set aside for the use or parking of any  
20 vehicle, whether attended or unattended, which is open to the  
21 public, or by any entity engaged in gambling authorized by law;
- 22 3. Any property adjacent to a building or office space in which  
23 concealed or unconcealed weapons are prohibited by the provisions of  
24 this section;

1       4. Any property designated by a city, town, county, or state  
2 governmental authority as a park, recreational area, wildlife  
3 refuge, wildlife management area, or fairgrounds; provided, nothing  
4 in this paragraph shall be construed to authorize any entry by a  
5 person in possession of a concealed or unconcealed firearm into any  
6 building, office space, or event which is specifically prohibited by  
7 the provisions of subsection A of this section;

8       5. Any property set aside by a public or private elementary or  
9 secondary school for the use or parking of any vehicle, whether  
10 attended or unattended; provided, however, the firearm shall be  
11 stored and hidden from view in a locked motor vehicle when the motor  
12 vehicle is left unattended on school property; and

13       6. Any public property set aside temporarily by a county, city,  
14 town, public trust with a county, city, or town as a beneficiary, or  
15 state governmental authority for the holder of an event permit that  
16 is without minimum security provisions, as such term is defined in  
17 paragraph 7 of subsection A of this section; provided, the carry of  
18 firearms within the permitted event area shall be limited to  
19 concealed carry of a handgun unless otherwise authorized by the  
20 holder of the event permit.

21       Nothing contained in any provision of this subsection or  
22 subsection C of this section shall be construed to authorize or  
23 allow any person in control of any place described in subsection A  
24 of this section to establish any policy or rule that has the effect

1 of prohibiting any person in lawful possession of a handgun license  
2 or otherwise in lawful possession of a firearm from carrying or  
3 possessing the firearm on the property described in this subsection.

4 C. A concealed or unconcealed weapon may be carried onto  
5 private school property or in any school bus or vehicle used by any  
6 private school for transportation of students or teachers by a  
7 person who is licensed pursuant to the Oklahoma Self-Defense Act,  
8 provided a policy has been adopted by the governing entity of the  
9 private school that authorizes the carrying and possession of a  
10 weapon on private school property or in any school bus or vehicle  
11 used by a private school. Except for acts of gross negligence or  
12 willful or wanton misconduct, a governing entity of a private school  
13 that adopts a policy which authorizes the possession of a weapon on  
14 private school property, a school bus, or a vehicle used by the  
15 private school shall not be subject to liability for any injuries  
16 arising from the adoption of the policy. The provisions of this  
17 subsection shall not apply to claims pursuant to the Administrative  
18 Workers' Compensation Act.

19 D. Notwithstanding paragraph ~~3~~ 2 of subsection A of this  
20 section, a board of education of a school district may adopt a  
21 policy pursuant to Section 5-149.2 of Title 70 of the Oklahoma  
22 Statutes to authorize the carrying of a handgun onto school property  
23 by school personnel specifically designated by the board of  
24 education, provided such personnel either:

1        1. Possess a valid armed security guard license as provided for  
2 in the Oklahoma Security Guard and Private Investigator Act; or

3        2. Hold a valid reserve peace officer certification as provided  
4 for in Section 3311 of Title 70 of the Oklahoma Statutes.

5        Nothing in this subsection shall be construed to restrict  
6 authority granted elsewhere in law to carry firearms.

7        E. Notwithstanding the provisions of subsection A of this  
8 section, on any property designated as a municipal zoo or park of  
9 any size that is owned, leased, operated, or managed by:

10       1. A public trust created pursuant to the provisions of Section  
11 176 of Title 60 of the Oklahoma Statutes; or

12       2. A nonprofit entity,  
13 an individual shall be allowed to carry a ~~concealed~~ handgun ~~but not~~  
14 ~~openly carry a handgun~~ open or concealed on the property.

15       F. Any person violating the provisions of paragraph ~~2~~ 1 or ~~3~~ 2  
16 of subsection A of this section shall, upon conviction, be guilty of  
17 a misdemeanor punishable by a fine not to exceed Two Hundred Fifty  
18 Dollars (\$250.00). A person violating any other provision of  
19 subsection A of this section may be denied entrance onto the  
20 property or removed from the property. If the person refuses to  
21 leave the property and a peace officer is summoned, the person may  
22 be issued a citation for an amount not to exceed Two Hundred Fifty  
23 Dollars (\$250.00).

1       G. No person in possession of a valid handgun license issued  
2 pursuant to the provisions of the Oklahoma Self-Defense Act or who  
3 is carrying or in possession of a firearm as otherwise permitted by  
4 law or who is carrying or in possession of a machete, blackjack,  
5 loaded cane, hand chain, or metal knuckles shall be authorized to  
6 carry the firearm, machete, blackjack, loaded cane, hand chain, or  
7 metal knuckles into or upon any college, university, or technology  
8 center school property, except as provided in this subsection. For  
9 purposes of this subsection, the following property shall not be  
10 construed to be college, university, or technology center school  
11 property:

12       1. Any property set aside for the use or parking of any motor  
13 vehicle, whether attended or unattended, provided the firearm,  
14 machete, blackjack, loaded cane, hand chain, or metal knuckles are  
15 carried or stored as required by law and the firearm, machete,  
16 blackjack, loaded cane, hand chain, or metal knuckles are not  
17 removed from the motor vehicle without the prior consent of the  
18 college or university president or technology center school  
19 administrator while the vehicle is on any college, university, or  
20 technology center school property;

21       2. Any property authorized for possession or use of firearms,  
22 machetes, blackjacks, loaded canes, hand chains, or metal knuckles  
23 by college, university, or technology center school policy; and  
24

1        3. Any property authorized by the written consent of the  
2 college or university president or technology center school  
3 administrator, provided the written consent is carried with the  
4 firearm, machete, blackjack, loaded cane, hand chain, or metal  
5 knuckles and the valid handgun license while on college, university,  
6 or technology center school property.

7        The college, university, or technology center school may notify  
8 the Oklahoma State Bureau of Investigation within ten (10) days of a  
9 violation of any provision of this subsection by a licensee. Upon  
10 receipt of a written notification of violation, the Bureau shall  
11 give a reasonable notice to the licensee and hold a hearing. At the  
12 hearing, upon a determination that the licensee has violated any  
13 provision of this subsection, the licensee may be subject to an  
14 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may  
15 have the handgun license suspended for three (3) months.

16        Nothing contained in any provision of this subsection shall be  
17 construed to authorize or allow any college, university, or  
18 technology center school to establish any policy or rule that has  
19 the effect of prohibiting any person in lawful possession of a  
20 handgun license or any person in lawful possession of a firearm,  
21 machete, blackjack, loaded cane, hand chain, or metal knuckles from  
22 possession of a firearm, machete, blackjack, loaded cane, hand  
23 chain, or metal knuckles in places described in paragraphs 1, 2, and  
24 3 of this subsection. Nothing contained in any provision of this



1 subsection shall be construed to limit the authority of any college,  
2 university, or technology center school in this state from taking  
3 administrative action against any student for any violation of any  
4 provision of this subsection.

5 H. The provisions of this section shall not apply to the  
6 following:

7 1. Any peace officer or any person authorized by law to carry a  
8 firearm in the course of employment;

9 2. Any district judge, associate district judge, or special  
10 district judge, who is in possession of a valid handgun license  
11 issued pursuant to the provisions of the Oklahoma Self-Defense Act  
12 and whose name appears on a list maintained by the Administrative  
13 Director of the Courts, when acting in the course and scope of  
14 employment within the courthouses of the county that falls within  
15 the jurisdiction of the district judge, associate district judge, or  
16 special district judge;

17 3. Any private investigator with a firearms authorization when  
18 acting in the course and scope of employment;

19 4. Any elected official of a county, who is in possession of a  
20 valid handgun license issued pursuant to the provisions of the  
21 Oklahoma Self-Defense Act, may carry a concealed handgun when acting  
22 in the performance of his or her duties within the courthouses of  
23 the county in which he or she was elected. The provisions of this  
24

1 paragraph shall not allow the elected county official to carry the  
2 handgun into a courtroom;

3       5. The sheriff of any county may authorize certain employees of  
4 the county, who possess a valid handgun license issued pursuant to  
5 the provisions of the Oklahoma Self-Defense Act, to carry a  
6 concealed handgun when acting in the course and scope of employment  
7 within the courthouse in the county in which the person is employed.  
8 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff  
9 from requiring additional instruction or training before granting  
10 authorization to carry a concealed handgun within the courthouse.  
11 The provisions of this paragraph and of paragraph 6 of this  
12 subsection shall not allow the county employee to carry the handgun  
13 into a courtroom, sheriff's office, adult or juvenile jail, or any  
14 other prisoner detention area;

15       6. The board of county commissioners of any county may  
16 authorize certain employees of the county, who possess a valid  
17 handgun license issued pursuant to the provisions of the Oklahoma  
18 Self-Defense Act, to carry a concealed handgun when acting in the  
19 course and scope of employment on county annex facilities or grounds  
20 surrounding the county courthouse that fall within the jurisdiction  
21 of the county employees; and

22       7. Any municipal judge, who is in possession of a valid handgun  
23 license issued pursuant to the provisions of the Oklahoma Self-  
24 Defense Act, when acting in the course and scope of employment

1 within the courthouses of the municipality that are within the  
2 jurisdiction of the municipal judge.

3 I. 1. Any elected official of a municipality or any municipal  
4 employee approved by the governing body of a municipality, who  
5 possesses a valid handgun license issued pursuant to the provisions  
6 of the Oklahoma Self-Defense Act, may carry a concealed handgun when  
7 acting in the performance of his or her official duties within  
8 municipal buildings that are within the jurisdiction of the elected  
9 official or municipal employee.

10 2. For purposes of this subsection, a firearm may not be  
11 present inside a firearm-prohibited location, which shall include:

12 a. any building or office space on municipally owned or  
13 leased property designated as a firearm-prohibited  
14 location by the municipality, municipal trust, or  
15 municipal authority, and

16 b. any police department, courthouse, courtroom, prison,  
17 jail, detention facility, or any facility used to  
18 process, hold, or house arrested persons, prisoners,  
19 or persons alleged delinquent or adjudicated  
20 delinquent.

21 3. Nothing in this subsection shall be construed to require an  
22 elected official or designated employee of the municipality to carry  
23 a firearm as a condition of employment or service with the  
24 municipality.

1 J. For the purposes of this section, "motor vehicle" means any  
2 automobile, truck, minivan, sport utility vehicle, or motorcycle, as  
3 defined in Section 1-135 of Title 47 of the Oklahoma Statutes,  
4 equipped with a locked accessory container within or affixed to the  
5 motorcycle.

6 SECTION 2. This act shall become effective November 1, 2026.  
7

8 60-2-14698 GRS 12/22/25  
9  
10  
11  
12  
13  
14  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24